

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, AUGUST 19, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ANDREW BEDENFIELD v. MEDIC AMBULANCE and WILLIAM WHITE
Case No. CU25-10648**

Demurrer

TENTATIVE RULING

Parties to appear. Moving party to confirm that the motion mailed to Plaintiff was not returned as undeliverable. The proof of service refers to PMB 232 but it is Apt. 232. (Although candidly the complaint reflects both Ste 130 and Apr 232 which is internally inconsistent.) Additionally, the court issued an OSC to Plaintiff for his failure to appear and file a CMC statement on July 7, 2026.

Defendant MEDIC AMBULANCE ("MEDIC") demurs to Plaintiff ANDREW BEDENFIELD's complaint alleging negligence. Plaintiff's complaint alleges that MEDIC responded to the scene after Plaintiff was in an automobile accident. MEDIC's personnel took down a statement at the scene from Plaintiff; the complaint is unclear whether personnel incorrectly recorded Plaintiff's statement or whether they correctly recorded a statement Plaintiff made incorrectly due to confusion from the impact of the collision.

The court has not received opposition to the demurrer.

The elements of a negligence claim are duty, breach, and causation of damages. (*Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 178-179.) Plaintiff's complaint states no duty, breach, causation, or damages on MEDIC's part. It is not clear how MEDIC owed Plaintiff a duty to correctly record his statements, if such a duty was

breached even if it existed, or how such a breach caused Plaintiff any harm. Plaintiff does not show how he could cure these significant defects through amendment.

MEDIC's demurrer is sustained without leave to amend.

PAUL ROEMMICK et. al., v. HYUNDAI MOTOR AMERICA
Case No. CU26-03927

Defendant HYUNDAI MOTOR AMERICA's Motion to Compel Arbitration

TENTATIVE RULING:

Defendant HYUNDAI MOTOR AMERICA ("Defendant") moves to compel arbitration of Plaintiffs PAUL and KATIE ROEMMICK's claims for violation of the Song-Beverly Consumer Warranty Act pertaining to their 2025 Hyundai Palisade (the "Vehicle"). Defendant states that the Vehicle's owner's handbook contains an arbitration clause, as does the service agreement for the Bluelink service package in which it says Plaintiffs enrolled the Vehicle.

Defendant's motion to compel arbitration is DENIED.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v. Applied Underwriters Captive Risk Assurance Co.* (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*)). Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

Existence of Agreement to Arbitrate; Equitable Estoppel. A party seeking to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence." (*Engalls v. Permanente Medical Group, Inc.* (1997) 15 Cal. 4th 951, 972.) Here, Defendant fails to meet that burden.

To the extent that Defendant relies on an arbitration provision contained in the 2025 Owner's Handbook & Warranty Information, Defendant has failed to establish mutual assent or that enforcing an arbitration agreement presented in this manner is not procedurally unconscionable.